

24STCV00989 24STCV00989

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-09-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C09%2F22%2F2026

Source SHA-256: 40d738e6fa61d9a9819c9d01005007400089bf043096e6279f15d95d31232d84

Case Number: 24STCV00989 Hearing Date: September 22, 2026 Dept: 617

Dept.

617

Date:

9-22-26

Case

#: 24STCV00989

Trial

Date: None Set

PRO HAC VICE

MOVING

PARTY: Defendants, Medtronic, Inc., Medtronic USA, Inc., Medtronic Logistics, LLC, and Medtronic Puerto Rico Operations Co.

RESPONDING

PARTY: Unopposed/Plaintiffs, Candy Bubar and Edward Bubar

RELIEF

REQUESTED

Motion

for Pro Hac Vice Admission

SUMMARY

OF ACTION

Plaintiff

Candy Bubar underwent a refill procedure for her Medtronic SynchroMed II model no. 8637-20 pain pump at the Cedars-Sinai Pain Center in Los Angeles. Defendant Dr. Howard L. Rosner performed the procedure. Immediately after the procedure, Candy became increasingly lethargic and confused, with her vital signs dropping. She then became bradycardic and non-responsive, and emergency medical services transported her to the emergency department. Candy's husband, Edward Bubar, witnessed the entire incident.

Shortly

after arriving at the emergency department, Candy went into cardiac arrest. After receiving CPR and epinephrine injections, her pulse returned approximately 10 minutes later. She was then intubated and admitted to the Neurocritical Intensive Care Unit for 8 days. During her hospitalization, she suffered acute hypoxemic respiratory failure, acute encephalopathy, post-arrest seizures, septic shock, a coma, and hypothermia. The primary cause of her injuries was determined to be baclofen toxicity, or drug overdose.

Candy

now sues Defendants Medtronic, Inc., Medtronic USA, Inc., Medtronic Logistics, LLC, and Medtronic Puerto Rico Operations Co. (collectively, "Medtronic") for: (1) strict product liability – manufacturing defect; (2) negligent manufacturing defect; (3) strict product liability – failure to warn; (4) negligent failure to warn; (5) negligence per se; (6) breach of express warranty; and (7) fraud. She also asserts a claim for medical negligence, among other claims, against Defendants Cedars-Sinai Health System, Cedars-Sinai Medical Center, and Dr. Rosner (collectively, "Cedars Defendants"). Edward brings claims against Defendants for negligent infliction of emotional distress and loss of consortium.

On

May 29, 2026, the Court sustained the demurrer to Candy's sixth cause of action for breach of express warranty.

RULING: Granted.

Medtronic

moves for pro hac vice admission of attorney Ilana Eisenstein.

Pro hac vice admission in California is governed by California Rules of Court, rule 9.40. To be admitted pro hac vice, one must be “an attorney in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States.” (Cal. Rules of Court, rule 9.40(a).) However, in no case shall an attorney appear pro hac vice if the attorney is a resident of California, regularly employed in California, or “regularly engaged in substantial business, professional, or other activities in the State of California.” (Ibid.)

An attorney seeking pro hac vice admission must file a verified application in court establishing:

(1) [t]he applicant’s residence and office address; (2)[t]he courts to which the applicant has been admitted to practice and the dates of admission; (3)[t]hat the applicant is a licensee in good standing in those courts; (4)[t]hat the applicant is not currently suspended or disbarred in any court; (5)[t]he title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and (6)[t]he name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

(Cal. Rules of Court, rule 9.40(d).)

The application complies with California Rules of Court, rule 9.40. Eisenstein lives and practices in Pennsylvania. She has applied for pro hac vice admission in California state court twice within the last two years. While the declaration of attorney Anna Yeung indicates the application was uploaded through the State Bar’s AIMS [Yeung Decl. ¶ 3], the application and notice of hearing must be served via mail. (Cal. Rules of Court, rule 9.40(c)(1).) The proof of service also does not indicate service on Dr. Rosner. The application for pro hac vice admission is granted, with counsel to file the requisite proof of service.

Medtronic to give notice.